

2:00 PM

LINE: 8

25-CIV-04308

ARMEN H JALALIAN VS. JPMORGAN CHASE, N.A., ET AL

ARMEN H JALALIAN
JPMORGAN CHASE, N.A.

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PLAINTIFF ARMEN JALALIAN'S MOTION FOR ORDER REQUIRING DEFENDANT SAM OSTAYAN TO LODGE ORIGINAL EXECUTED DEEDS WITH THE COURT

TENTATIVE RULING:

Plaintiff's Motion for Order Requiring Defendant Sam Ostayan to Lodge Original Executed Deeds With the Court is **DENIED without prejudice**. Plaintiff has not shown a statutory or evidentiary basis for requiring originals to be lodged with the Court outside the ordinary discovery, subpoena, or trial-evidence process. The ruling is without prejudice to properly served discovery, a properly supported motion to compel, a subpoena duces tecum, or an evidentiary objection or request at trial.

Plaintiff's Motion for Order Requiring Certain Defendants to Lodge Original Instruments with the Court is also **DENIED without prejudice**. The difference between the Notice of Trustee's Sale amount and the later Notice of Default arrearage does not, by itself, establish that original instruments must be lodged with the Court, and California's nonjudicial foreclosure scheme does not require production of the original note or deed of trust as a condition of initiating foreclosure procedures.

The Court does not decide at this time whether any recorded instrument is authentic, valid, enforceable, void, voidable, or entitled to evidentiary admission. Those issues are preserved for proper motion, discovery, or trial proceedings.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare, for the Court's signature, a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE: 9

25-CIV-05899

PHILIPPOS GRATSINOPOULOS, ET AL VS. FRANK RAMIREZ, ET AL

PHILIPPOS GRATSINOPOULOS
FRANK RAMIREZ

MARCIA A. WALLIS
CANDICE S. NAM

DEFENDANTS FARMERS GROUP, INC., FARMERS INSURANCE COMPANY OF OREGON, FARMERS INSURANCE COMPANY OF WASHINGTON, FARMERS INSURANCE COMPANY, INC., FARMERS INSURANCE EXCHANGE, FARMERS INSURANCE OF COLUMBIA, INC., FARMERS NEW WORLD LIFE INSURANCE COMPANY, FIRE INSURANCE EXCHANGE, MID-CENTURY INSURANCE COMPANY AND TRUCK INSURANCE EXCHANGE’S DEMURRER TO FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants Farmers Insurance Exchange, Fire Insurance Exchange, Truck Insurance Exchange, Mid-Century Insurance Company, Farmers New World Life Insurance Company, Farmers Insurance Company, Inc., Farmers Insurance Company of Oregon, Farmers Insurance Company of Washington, and Farmers Insurance of Columbus, Inc.’s demurrer to the First, Second, Eighth, Tenth, and Eleventh Causes of Action in Plaintiff’s First Amended Complaint (“FAC”) is **SUSTAINED IN PART WITH LEAVE TO AMEND** and **OVERRULED IN PART** pursuant to Code of Civil Procedure section 430.10, subdivision (e), as follows.

The demurrer to the First Cause of Action for Wrongful Termination in Violation of Public Policy is **SUSTAINED WITH LEAVE TO AMEND**. The demurrer to the Second Cause of Action for Violation of Penal Code section 632 is **SUSTAINED WITH LEAVE TO AMEND**. The demurrer to the Eighth Cause of Action for Promissory Estoppel is **SUSTAINED WITH LEAVE TO AMEND**. The demurrer to the Tenth Cause of Action for Breach of Contract and the Eleventh Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing is **OVERRULED** as to the Farmers Defendants generally, but **SUSTAINED WITHOUT LEAVE TO AMEND** as to Defendant FGI only.

FIRST CAUSE OF ACTION FOR WRONGFUL TERMINATION

The elements of a cause of action for wrongful termination in violation of public policy are: (1) an employer-employee relationship; (2) termination of the plaintiff’s employment; (3) a termination substantially motivated by a violation of public policy; and (4) resulting harm. (*McDoniel v. Kavry Management, LLC* (2025) 114 Cal.App.5th 949, 962-963; *Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 973.) To support a tortious discharge claim, the policy must be supported by constitutional or statutory provisions, inure to the benefit of the public rather than merely serve private interests, have been articulated at the time of discharge, and be fundamental and substantial. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.)

Plaintiff alleges that, in or about August 2024, Defendant Ideal Traits unknowingly recorded him; that a Farmers HR manager later played the recording on a call with Plaintiff, Defendant Ramirez, and Farmers representative Edwin Kerr; and that Farmers then terminated Plaintiff for cause based on the recording. (FAC, ¶¶ 76, 82-86.) Defendants argue that this cause of action fails because the FAC does not allege that Farmers made the recording and because Penal Code
